R 51-10

SUSPENSIONS, REDUCTIONS, WITHDRAWALS, EXPIRY AND RE-INSTATEMENT OF ACCREDITED OR GLP/GCP COMPLIANT ORGANISATIONS

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1. Purpose and Scope

This document describes the procedure to be followed when sanctions, such as suspension, reduction and withdrawal of accreditation or Good Laboratory Practice/ Good Clinical Practice (GLP/GCP) compliance, are imposed on accredited/compliant organisations, including the procedures for the expiry and re-instatement of accreditation.

This procedure applies to all SANAS accredited conformity assessment bodies and GLP/GCP compliant facilities.

2. Definitions and References

2.1 References

PM 01	SANAS Policy Manual
A 01	References, Acronyms and Definitions
F 147	SANAS Terms and Conditions of Accreditation
F 199	SANAS Terms and Conditions of GLP/GCP Compliance
P 12	Handling of Complaints and Appeals
P 20	The Responsibilities and Duties of the Approval Committees and Accreditation Managers in the Approval and Decision on Accreditation
R 03	Nominated Representative and Signatories: Responsibilities, Qualifications and Approval
R 04	Conditions for the use of Accreditation Symbols, Reference to Accreditation and Combined Marks
R 53	Relationship between SANAS and the Regulators
IAF MD2	IAF Mandatory Document for the Transfer of Accredited Certification of Management Systems

Act 19, 2006: Accreditation for Conformity Assessment, Calibration and Good Laboratory Practice Act, 2006.

2.2 Acronyms and Definitions

Organisation	in the context of this document refers to a conformity assessment body and/or a GLP/GCP compliant facility.
Terms and Conditions	means the SANAS Terms and Conditions of Accreditation and of GLP/GCP Compliance
Compliance	means compliance to the principles of the Organisation for Economic Cooperation and Development (OECD) for GLP or GCP

3. General

To ensure compliance to accreditation or GLP/GCP compliance requirements, regulatory requirements, safeguard the integrity of the accreditation / GLP/GCP compliance system and the reliability of results produced by an accredited/compliant organisation, where applicable, SANAS applies various sanctions to accredited / compliant organisations who have failed to meet the applicable requirements. These requirements include those specified in any accreditation standard, guide, regulation and/or any IAF/ILAC/AFRAC/SADCA/OECD mandatory document which applies to an organisation, the Act, SANAS Terms and Conditions for Accreditation and any policies, procedures, rules and requirements of SANAS which applies to an organisation.

Sanctions may include suspension of an organisation's accreditation / compliance or part thereof, or where warranted, reduction or withdrawal of an organisations' accreditation / compliance status.

A decision to suspend, reduce and/or withdraw an organisation's accreditation / compliance can have a major impact on its employer, employees and its clients, and therefore SANAS does not take

such decisions lightly. Suspensions, reductions and withdrawals could either be self-imposing (voluntary) or imposed by SANAS, where warranted.

SANAS procedure P 12 “Handling of Complaints and Appeals” sets out the process that must be followed by an organisation should it wish to appeal against a suspension, reduction or withdrawal of their accreditation / compliance.

Expiry of accreditation occurs once the “Certificate Expiry Date”, as reflected on the Certificate of Accreditation, has gone past and all processes for the renewal of accreditation have not been satisfactorily executed by the CAB by the date of expiry of accreditation.

4. Suspension of Accreditation or GLP/GCP Compliance

4.1 Suspension of accreditation / compliance means that accreditation / compliance is temporarily made invalid for the full scope of accreditation / compliance, or part thereof. Suspension of an organisation may result from:

4.1.1 Voluntary suspension, which is normally requested by an organisation for reasons which includes, but is not limited to:

- Loss of all technical signatories or competent staff members;
- Relocation of the organisation, part thereof or movement/change of equipment that may have an impact on the results produced;
- Restructuring or changes that affects the organisation’s ability to produce reliable results;
- A breakdown of the organisation’s management system;
- Any other reason that might compromise the integrity of the results produced by the organisation or compliance with the accreditation / compliance requirements;
- Where during an assessment / inspection or special investigation, SANAS finds that the organisation no longer complies with accreditation / compliance requirements; or
- Any other circumstances that SANAS may deem appropriate warranting the suspension of an organisation.

The organisation must apply to the relevant Accreditation Manager (AM) in writing. The application shall be supported with valid reasons and the effective date, to be placed under suspension. Organisation’s that are placed in voluntary suspension shall give an undertaking to adequately address the circumstances that caused the request for suspension within **three months** of the effective date of suspension.

The Accreditation Manager may approve an organisation’s written request, if received at least 2 weeks prior to the end of the three months suspension period and containing valid reasons, to extend the initial deadline for the clearance of non-conformances. (Refer to 7.9).

4.1.2 Suspension imposed by SANAS for the full scope of accreditation / compliance or part thereof.

- SANAS shall, in its sole and absolute discretion, suspend an organisation’s accreditation / compliance or part thereof, by means of written notification, for a breach of conditions as specified in the SANAS Terms and Conditions.

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- Where an organisation fails to comply with the requirements for transition to a standard by the end of the transition period, the accreditation to the old standard will no longer be valid, and therefore the Accreditation Manager will initiate suspension of the organisation upon the end of the transition period. The P20 Approval Committee process will not apply in this case where an assessment did not take place.

5. Withdrawal and Reduction of Accreditation or GLP/GCP Compliance

5.1 Withdrawal of accreditation / compliance means the cancellation of the statement of conformity for the full scope of accreditation / compliance. Reduction of accreditation / compliance means the cancellation of part of the scope of accreditation.

Withdrawal or reduction of accreditation may be either:

5.1.1 Voluntary (self-imposed), as requested by an organisation; or
5.1.2 Imposed by SANAS.

5.2 SANAS shall, in its sole and absolute discretion, reduce or withdraw an organisation's accreditation / compliance, by means of written notification, for a breach of conditions as specified in the SANAS Terms and Conditions.

6. Process of Implementing a Suspension or Withdrawal

6.1 Decisions to suspend, reduce or withdraw accreditation are made by either:

i) The SANAS Approval Committee (following an assessment) – refer to SANAS P20 "The Responsibilities and Duties of the Approval Committees and Accreditation Managers in the Approval and Decision on Accreditation";

ii) The Executive: Accreditation, in consultation with the relevant AM in the case of voluntary or enforced suspensions for failure to comply with the conditions as stipulated in the Terms and Conditions of Accreditation / GLP Compliance (F147 or F199 as applicable) and not following the outcome of an assessment.

The Executive's decision will be based on written recommendation and with valid reasons by the relevant AM / Finance Manager, as required.

iii) The CEO in consultation with the Executive: Accreditation and/or AM in the case of voluntary or enforced withdrawals or reductions of accreditation for failure to comply with the conditions as stipulated in the Terms and Conditions of Accreditation / GLP Compliance (F147 or F199 as applicable) and not following the outcome of an assessment.

The CEO's decision will be based on written recommendation and with valid reasons by the relevant Executive / Legal Council, as required.

6.2 SANAS will notify the organisation in writing of the intent to suspend, reduce or withdraw the accreditation, as is relevant, detailing amongst others:

- The date on which the suspension / reduction / withdrawal will become effective;
- The reasons for suspension / reduction / withdrawal; and
- The extent of the suspension / reduction / withdrawal;

6.3 SANAS will grant the organisation a maximum of 48 hours (excluding non-working days) from the notification of SANAS's intent to suspend / reduce / withdraw the organisation's

accreditation, to provide SANAS with reasons as to why their accreditation should not be suspended / reduced or withdrawn, as relevant.

6.4 Based on the consideration of the organisation's response, SANAS shall make a decision within 48 hours (or 2 working days) of receipt of the response, as to whether to proceed with the suspension, reduction or withdrawal of accreditation or not.

6.5 Should the decision be not to suspend, reduce or withdraw, the relevant AM in consultation with the Executive shall agree on the way forward.

6.6 Should the decision be to proceed with the suspension, reduction or withdrawal, SANAS will issue a letter of suspension, reduction or withdrawal, as is relevant, detailing amongst others:

- The effective date of the suspension / reduction / withdrawal;
- The reasons for suspension / reduction / withdrawal;
- The extent of the suspension / reduction / withdrawal;
- The implications and conditions during the suspension period / reduction / withdrawal;
- The conditions for re-instatement in the case of suspensions.

6.7 The Accreditation Executive or CFO, as applicable, has been delegated the authority by the CEO, to issue the letter to suspend accreditation / compliance.

6.8 Letters of withdrawal / reduction of accreditation will be issued by the CEO on written recommendation and with valid reasons by the Accreditation Executive, CFO / Legal Council / Approval Committee, as applicable.

6.9 During the period of suspension the SANAS Terms and Conditions will remain valid subject to the conditions contained in this document as well as in SANAS document R04 "Conditions for the use of Accreditation Symbols, Reference to Accreditation and Combined Marks".

6.10 A record of the reasons for suspension, reduction or withdrawal, the duration of suspension and a record that all suspension, reduction and withdrawal procedures have been adhered to will be maintained by the relevant Accreditation Manager.

6.11 SANAS will update the accreditation status of the organisation on the SANAS website, including the applicable dates of the suspension or withdrawal and the affected scopes. The withdrawal status of an organisation will be shown on the website for a period of 3 months, after which all details of the organisation will be removed.

Note: In exceptional cases, access to certain information can be limited upon the organisation's request (e.g. for security reasons), however the request shall be submitted in writing to the CEO with valid justification.

7. Conditions of Suspension, Reduction, Withdrawal or Expiry of Accreditation or GLP/GCP Compliance

7.1 An organisation shall, upon suspension, expiry or withdrawal of SANAS accreditation / compliance, immediately cease to issue certificates and any other materials displaying the SANAS accreditation / compliance symbol, the combined mark or containing references to SANAS accreditation / compliance.

7.2 In the case of partial suspension or reduction of accreditation / compliance, reports shall clearly identify the scopes for which accreditation / compliance cannot be claimed. Refer to R04 "Conditions for the use of Accreditation Symbols, Reference to Accreditation and Combined Marks". Failure to comply with this requirement is a criminal offence and is substantiated by Section 24 (2) read with Section 27 (2) of the Accreditation of Conformity

Assessment, Calibration and Good Laboratory Practice Act 19 of 2006 ("the Accreditation Act").

7.3 The organisation shall inform their affected clients of the suspension, reduction, expiry or withdrawal of its accreditation and the associated consequences without delay.

7.4 Certification bodies shall honour existing certification contracts during the period of suspension, by continuing to carry out the prescribed surveillance activities in accordance with the requirements of the pre-established certification programmes. The extension or renewal of certificates with the SANAS accreditation symbol is however not permitted during a suspension period.

7.5 Upon suspension, the Certification body shall provide SANAS with a list of valid certificates that have been issued under certification prior to suspension.

7.6 The results of conformity assessment activities that have been carried out during the suspension period shall not be re-issued after the lifting of the suspension bearing the SANAS accreditation symbol.

7.7 Conformity assessment bodies operating in the regulatory domain, such as certain Inspection Bodies and Verification Laboratories, shall not issue any reports for the scope under suspension during the period of suspension or after withdrawal or expiry of accreditation. (Refer to R53 "Relationship between SANAS and the Regulators").

7.8 An organisation is required to immediately return their certificate and scope of accreditation / compliance to SANAS as soon as withdrawal of their accreditation / compliance is effective. Once withdrawn or upon expiry of accreditation, Certification Bodies are to implement IAF MD2.

7.9 An organisation may not be under suspension for longer than 3 months without the written authorisation of the AM. It is the organisation's responsibility to apply to the relevant AM, in writing, with valid reasons, and no later than two (2) weeks prior to the expiry of the suspension period, to extend their suspension for each additional three-month period, but for no longer than 9 additional months, after which accreditation / compliance will be withdrawn.

7.10 A period of suspension shall not go beyond the date of expiry of accreditation / compliance. Accreditation / compliance becomes invalid on the day of expiry of the accreditation and will result in the organisation having to re-apply for accreditation / compliance as a new applicant with the associated costs and penalties. (Refer to P 14 "SANAS Fees").

7.11 Where an application for extension of the suspension period has not been received, SANAS has the right to elect by means of written notification, to withdraw or reduce the organisation's scope of accreditation / compliance. Withdrawal of accreditation / compliance will result in the organisation having to re-apply for accreditation / compliance as a new applicant with the associated costs and penalties. (Refer to P 14 "SANAS Fees").

7.12 An Accreditation Manager, may, at his/her discretion, allow an CAB up to a maximum of two (2) months past the date of expiry to address non-conformances resulting from a re-assessment. It is important to note that a period of non-accreditation will apply after the date of expiry and prior to the re-instatement of accreditation. The decision (Approval Committee date) to re-instate the accreditation after expiry may not exceed 3 months. After this period, the organisation will have to re-apply for accreditation / compliance as a new applicant with the associated costs and penalties. (Refer to P 14 "SANAS Fees").

7.13 The organisation shall be responsible for all costs associated with a suspension, expiry or withdrawal, such as any additional on-site visits or re-instatement visits as required by SANAS, and any costs associated the handling of an appeal against such adverse decisions (refer to P 12 "Handling of Complaints and Appeals"). An organisation shall remain liable for all fees whilst in suspension. If withdrawal or expiry of accreditation / compliance has occurred, then a pro-rata percentage of their annual fees are still due to SANAS for the financial year. If the organisation was assessed / inspected in the same

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financial year as their withdrawal or expiry, they will also be liable for the travel and subsistence costs of the assessment / inspection.

8. Re-instatement of Accreditation or GLP/GCP Compliance

8.1 Re-instatement of suspended organisations

8.1.1 An organisation under suspension is required to submit to SANAS evidence of appropriate corrective action taken, prior to the end of the suspension period.

8.1.2 SANAS shall evaluate the corrective actions taken to address the non-conformances/reasons that led to the suspension, during the re-instatement assessment / inspection and subsequent assessments / inspections if necessary.

8.1.3 In the case of loss of all technical signatories, the organisation shall remain under suspension until such time that SANAS has verified the competence of any new proposed technical signatory for the relevant accredited scope(s).

8.1.4 Where an organisation has been suspended for non-payment of fees, SANAS shall re-instate the accreditation / compliance of an organisation immediately upon receipt of payment made within the suspension period of any outstanding amounts due to SANAS, subject to their being no other outstanding issues, and the payment was done within the assessment cycle.

Note: The Finance Manager shall always first confirm with the relevant Accreditation Manager that the facility has not also been suspended for any other issues.

8.1.5 Where an organisation has received AM approval for a suspension period of longer than 6 months, the re-instatement visit will be treated as a full re-assessment / re-inspection.

8.1.6 Once an organisation has satisfactorily addressed the issues which resulted in suspension, accreditation / compliance it may be re-instated on approval by the relevant AM and, where a re-instatement visit is required, on approval by the Approval Committee.

8.1.7 An organisation that is under suspension may be required to undergo an on-site reinstatement assessment / inspection, at the discretion of the relevant AM, where the reasons for the suspension indicated that the competency of the organisation or the ability to produce reliable results was affected. A positive recommendation by the assessment / inspection team and approval by the AC or AM, as applicable, is required prior to re-instatement of accreditation / compliance. The extent of such an assessment / inspection will be determined by the relevant AM based on the reasons for suspension, and the associated risk. All costs will be for the account of the organisation.

8.1.8 In the event that a suspension is up until the expiry of accreditation, at the discretion of the AM, a reinstatement assessment may be arranged no longer than two (2) months after the expiry date of accreditation. It is important to note that a period of non-accreditation will apply after the date of expiry and prior to the re-instatement of accreditation. The decision (Approval Committee date) to re-instate the accreditation after expiry may not exceed 3 months. After this period, the organisation will have to re-apply for accreditation / compliance as a new applicant with the associated costs and penalties. (Refer to P 14 “SANAS Fees”).

8.1.8 Notification of re-instatement of accreditation / compliance will be sent to the organisation, detailing the scope that the re-instatement applies to.

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8.1.9 The organisation's accreditation / compliance certificate will be restored on the SANAS website once accreditation / compliance has been re-instated.

8.1.10 SANAS reserves the right not to reinstate accreditation / compliance of an organisation should the organisation be successfully prosecuted in terms of the Accreditation Act or obtain any other judgement and/or order and/or restraint including an interdict against such an organisation that operates, amongst others, in a manner that brings accreditation / compliance or SANAS into disrepute.

8.2 Handling of Accreditation or GLP/GCP compliance that has been withdrawn or has expired

8.2.1 An organisation whose accreditation/compliance has been withdrawn or has expired, will be required to re-apply for accreditation / compliance as a new applicant, should it wish to obtain accreditation/compliance again. All costs associated with the application shall apply.

8.2.2 Where the full scope of accreditation / compliance has been withdrawn or has expired, the previous accreditation / compliance number will be made obsolete, and the organisation will be issued a new SANAS accreditation / compliance number once re-accredited or once GLP/GCP compliance has been granted again.

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ADDENDUM 1: Amendment Record

Proposed By:	Section	Change
QM	Title	Added “expiry”
QM	1	Added “expiry and”
QM	3	Par 1: Added reference to SADCA and the SANAS Terms and Conditions for Accreditation Last Par. added.
QM	4.1.1	Last Par.: “at least 2 weeks prior to the end of the three months suspension period” replaced “prior to the deadline”
QM	4.1.2	2nd bullet: Added “, the accreditation to the old standard will no longer be valid, and therefore”
QM	6.1	“relevant Executive” changed to “Executive: Accreditation” in points (i) and (iii)
QM	7	Included “expiry” to the title, and also included reference to “expiry in clauses 7.1; 7.3; 7.7; 7.13
QM	7.8	“scope” replaced “schedule” Added ”or upon expiry of accreditation”
QM	7.9	Line 4: “One month” changed to “three month”
QM	7.10	New clause added
QM	7.12	New clause added
QM	8.1.7	Line 2: Added “reinstatement”
QM	8.1.8	New clause added
QM	8.2	Added “or has expired’ in clause title, and in clauses 8.2.1 and 8.2.2